

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 24, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne and Mr. Shanor. ABSENT: Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Allen and Mr. Brown, Agenda Items #8 and #16(b) were removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Shanor and Mr. Allen, Agenda Items #16(e) (f) and (g) were removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Shanor and Mr. Allen, Agenda Item #9 was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 10, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry regarding a voucher payable to AP Wyoming relative to services provided for the municipal pool renovation and expansion project, Rick Parish, Parks & Recreation Director, provided an explanation of pre-construction fees affiliated with project services by the vendor. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 3rd Filing, a replat of Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road). Motion (per Consent Agenda) carried. (#5574)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Capitol Ridge, a replat of all of Lots 1-24, Block 14, Interior Heights Addition, Cheyenne, Wyoming

(located at the northwest corner of the intersection of W. 4th Street and Cribbon Avenue). Reporting for Public Services Committee, Mr. Shanor moved to adopt, seconded by Mr. Allen. Mr. Shanor moved to amend, seconded by Ms. Broyles, by adding the following condition: If detention is to be on city property, then before signatures are affixed to the map the MOU shall be signed by all parties. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#5575)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 9th Filing, a replat of Lots 13 thru 16, Block 3 and Lots 8 thru 15, Block 8, The Bluffs, 7th Filing, Cheyenne, Wyoming (located east of and adjacent to Point Bluff, between Foothills and Plain View Roads). Mr. Shanor moved to adopt, seconded by Mr. Luna. Comment followed regarding a citizen concern that had been received relative to proposed townhouses instead of single family homes to be developed on the site without notification to the neighborhood. Motion carried. Voting "yes" -- all members of the governing body present. (#5576)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to fund the 2014 Historic Cheyenne Film Contest Project. Motion (per Consent Agenda) carried. (#5577 Res/#6148 Contract)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government (CLG) Grant Agreement in order to fund design of a new Cheyenne Historic Preservation Board logo and design and production of new brochures relating to Historic Preservation in the City of Cheyenne. Motion (per Consent Agenda) carried. (#5578 Res/#6147 Contract)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5579)

[CA] RESOLUTION - Providing for the review and approval of the South Cheyenne Water & Sewer District's Federal Mineral Royalty Capital Construction Account Grant Application before the Wyoming State Loan and Investment Board for the Sanitary Sewer Parallel Main Extension (Prosser) Project -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Declaring as surplus a City-owned property legally described as Lots 1 and 2, Block 15, Roberts Place, an addition to the City of Cheyenne, Laramie County, Wyoming (generally located at the southwest corner of O'Neil Avenue and West 5th Street), together with improvements thereon, and authorizing formal appraisal of the property and the City's Purchasing Director to proceed with the sale of said property pursuant to Wyo. Stat. § 15-1-112 -- referred to Finance Committee (sponsor -- Mr. Brown).

Preliminary Plat for Pronghorn Crossing, a replat of Lots 15 & 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, west of Ridge Road). Mr. Shanor moved to acknowledge receipt with staff recommendations #1 and 2, seconded

by Mr. Allen. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Professional Services Agreement between the City of Cheyenne and Orion Planning Group to provide an ordinance update for Historic Preservation Regulations (CLG Grant). Motion (per Consent Agenda) carried (amount not to exceed \$11,975.00). (#6140)

Professional Services Agreement between the City of Cheyenne and TischlerBise to provide a Development Impact Fee Study (Impact Assistance Funds and MPO Funds). Reporting for Finance Committee, Mr. Brown moved to approve in an amount not to exceed \$76,720.00, seconded by Ms. Broyles. Mr. Shanor moved to amend, seconded by Mr. Allen, Exhibit C, Scope of Work, paragraph 6, Report, by adding a new sub-section (i) to read as follows: Recommended strategies, policies and practices that could moderate the need for impact fees. It was advised the amendment clarifies expectations, and will help with providing an overall look at options and mitigating the need for increased fees. Upon inquiry, Matt Ashby, Planning Services Director, advised the amendment will provide clarification and should be workable for the provider under the scope of work. He noted if the contractor should have a concern with the amendment, any changes would come back to the governing body as a contract modification. Motion to amend carried. Voting “yes” – all members of the governing body present. Upon inquiry, Jim Flesher, Planning Department, clarified there was no services delivery date in the agreement, noting it is anticipated the study could be completed next fall or winter followed by an ordinance to be presented to the governing body. Comment followed that the study topic was not time sensitive in nature; concern was expressed with an open-ended date to receive the study. Main motion as amended carried. Voting “yes” - all members of the governing body present. Mayor Kaysen suggested quarterly reports on the status of the study be given to Council members due to the open-ended date. (#6141)

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center. Motion (per Consent Agenda) carried. (#6142)

[CA] Juvenile Housing Agreement between Laramie County, Wyoming, and the City of Cheyenne. Motion (per Consent Agenda) carried. (#6143)

Contingency and Development Agreement, City of Cheyenne and Searing Industries, to be submitted to the Wyoming Business Council in connection with Business Ready Communities-Business Committed Grant and Loan program for the Swan Ranch Rail Spur Project (Business & Community Ready Grants). Mr. Brown moved to approve, seconded by Mr. Shanor. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. It was advised the amendment is a title change to Exhibit One which will now read “City of Cheyenne/Granite Peak Amended and Restated Project Development and Administration Agreement”. Motion to amend carried. Voting “yes” -- all members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#6144)

Amended and Restated Project Development and Administration Agreement between the City of Cheyenne, Cheyenne-Laramie County Corporation for Economic Development (LEADS), and Granite Peak Development Limited Partnership, to be submitted to the Wyoming Business

Council in connection with the Business Ready Communities-Business Committed Grant and Loan program for the Swan Ranch Rail Spur Project (Business & Community Ready Grants). Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to amend by substitute dated March 21, 2014, seconded by Mr. Shanor. Upon inquiry, Dan White, City Attorney, advised the proposed transaction with regard to the rail spur in the Swan Ranch Rail Park was initially going to be a \$5,000,000 loan but was subsequently changed when it went before the Business Council and State Land and Investment Board to become a grant/loan combination which necessitated the proposed amendment. Mr. White reviewed the proposed changes in the substitute document. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#6145)

Track Lease Agreement between the City of Cheyenne, CLH, LLC, a Wyoming Limited Liability Company, and Granite Peak Development Limited Partnership, a Wyoming Limited Partnership, for rail facilities within Swan Ranch Rail Park, Cheyenne, Wyoming (Business & Community Ready Grants). Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to amend by substitute, seconded by Ms. Broyles. Dan White, City Attorney, reviewed changes contained in the substitute with regard to wording in the Indemnity clause. Motion to amend carried. Voting "yes" -- all members of the governing body present. A clerical error was noted in paragraph 7, which will be corrected. Main motion as amended carried. Voting "yes" -- all members of the governing body present. (#6146)

[CA] Part-time Employment Agreement with Ronn J. Jeffrey to act as the Juvenile Court Judge to provide juvenile offender diversion services through the City of Cheyenne Municipal Court -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5907 between the City of Cheyenne, Engineering Department, and AVI Professional Corporation for additional design work and construction management services for the Snyder Reconstruction Design Project (2007 - 2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$90,084.00). (#5907)

[CA] Amendment No. 1 to Contract No. 6089 between the City of Cheyenne, Police Department, and the State of Wyoming Department of Transportation, Highway Safety Program for mobile impaired command post (Highway Safety Grant). Motion (per Consent Agenda) carried. (#6089)

[CA] Consideration of Bid #M-15-14 for annual purchase of furnishing aggregate for the Street and Alley Division (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Simon Contractors, Cheyenne, WY; \$5.25/ton).

[CA] Consideration of Bid #M-16-14 for annual purchase of hot mix, tack oil and cold mix for the Street and Alley Division (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from JTL Group, Inc. d/b/a Knife River; Hot Mix-\$50/ton, Tack Oil-\$1.35/gal., Cold Mix-\$76.50/ton).

[CA] Consideration of Bid #R-19-14 for furnishing 76 new desktop computers for the City of Cheyenne, Information Technology Division, pursuant to the City's replacement program (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from CDW Government LLC, Vernon Hills, IL; amount not to exceed \$49,260.16).

[CA] Consideration of Bid #M-14-14 for a contract between the City of Cheyenne, Engineering

Department, and Reiman Corporation & Subsidiary of Cheyenne, Wyoming, for the West Lincolnway Streetscape project (State & Local Grants, Miscellaneous Federal Grants) -- referred to Finance Committee.

[CAJ] Consideration of Bid #R-11-14 for furnishing 100 plastic rearload 2-yard commercial refuse containers for the City of Cheyenne, Sanitation Division (Impact Assistance Fund) -- referred to Finance Committee.

[CAJ] Consideration of Bid #R-13-14 for furnishing two new 2013-2014 GO-4 parking patrol vehicles for the City of Cheyenne, Parking Division (Impact Assistance Fund) -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held April 14, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of location for a microbrewery permit application filed with the City Clerk's Office for Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., 1509 Pioneer Avenue, Cheyenne, Wyoming (license currently held by Freedom's Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., 301 W. 16th Street, Cheyenne, Wyoming).

Announcement was made of a Public Hearing to be held Monday, April 14, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for Fiscal Year 2014-2015 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement.

Announcement was made of a Public Hearing to be held April 14, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a bar and grill liquor license application filed with the City Clerk's Office, for WRCH-Cheyenne, Inc. d/b/a Wyoming's Rib and Chop House, 400 W. Lincolnway, Cheyenne, Wyoming.

Announcement was made of the Re-Appointments of John M. Jolley and David A. Pulley, to the International Fire Code Board of Appeals, to be confirmed April 14, 2014.

Under other business, David Evans, attorney, Hickey and Evans law firm, representing International Association of Fire Fighters (I.A.F.F.) Local #279, requested a motion be made and passed by the governing body at the current meeting to waive any missed deadline relative to the Union's request to enter into collective bargaining, noting the Union's position is that the deadline was met and the request was timely submitted. Mr. Evans commented in support of his request and presented concerns and potential issues if a new contract is not in place; advised a grievance had been filed on this date; referenced a previous opinion that had been submitted at the last City Council meeting regarding authority to waive the deadline, and responded to inquiries posed by City Council members. Comments and inquiries presented by Council members included: Whether collective bargaining discussions could begin sooner to coincide with the annual budget preparation; timing of past requests relative to state statute provisions and annual state legislative sessions; quorum of the governing body required to conduct collective bargaining meetings, and the number of times collective bargaining has resulted in arbitration.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:47 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
April 7, 2014